IN THE COUNTY COURT AT MARLBRIDGE

Claim No. MS-2026-0417
Issued 23 October 2026

BETWEEN

SALTMARSH SHIPPING LTD Claimant

– and –

KINGSHOLM TONNAGE LTD Defendant

PARTICULARS OF CLAIM

THE PARTIES

1. The claimant, Saltmarsh Shipping Ltd, is a shipping company whose registered office is at Saltmarsh House, 2 Wharf Road, Eastwick EW1 3SB. It operates vessels and charters others to carry cargo.

2. The defendant, Kingsholm Tonnage Ltd, is a company whose registered office is at Kingsholm House, 31 Fenner Street, Eastwick EW4 8HP. It owns the MV Northern Star (the **Vessel**).

THE CHARTERPARTY

3. By a voyage charterparty dated 12 March 2026 (the **Charterparty**) the defendant, as owner, let the Vessel to the claimant, as charterer, to carry 5,200 tonnes of packaged sawn timber from Eastwick to one safe berth at Hartmouth.

4. By clause 9 of the Charterparty the claimant had six weather working days to discharge the cargo (**laytime**). Laytime was to start at 08:00 on the working day after the master gave notice of readiness. Sundays and holidays at Hartmouth did not count unless the claimant used them to discharge, and no time counted while weather stopped discharge.

5. By clause 10, if discharge was not complete when laytime ran out, the claimant was to pay demurrage at USD 18,000.00 a day, and pro rata for part of a day, until discharge was complete. Once the Vessel was on demurrage every hour counted.

6. By clause 24, English law governs the Charterparty, and a dispute goes to arbitration in London only if both parties agree in writing. Otherwise the courts of England decide it. The defendant has not agreed to arbitration, so this court has jurisdiction.

THE DISCHARGE AT HARTMOUTH

7. The Vessel arrived at Hartmouth with the cargo, and the master gave notice of readiness at 10:24 on Monday 3 August 2026.

8. Under clause 9 laytime therefore began at 08:00 on Tuesday 4 August 2026, the working day after notice of readiness, and not at 10:24 on 3 August 2026.

9. Discharge began at 08:00 on Tuesday 4 August 2026.

10. From 00:00 on Friday 7 August to 24:00 on Monday 10 August 2026 discharge was stopped by a heavy swell at the berth, and the harbour closed its pilot station under harbour notices 41/26

and 42/26. No cargo was discharged in that time. By clause 9 none of that time counted as laytime.

11. Sunday 9 August 2026 fell within that period. It was a Sunday on which nothing was discharged, so it did not count in any case.

12. Discharge resumed at 00:00 on Tuesday 11 August 2026 and was completed at 16:24 on Wednesday 19 August 2026.

DEMURRAGE PROPERLY DUE

13. Counting only the time that clause 9 counts, laytime of six days began at 08:00 on 4 August 2026 and ran out at 08:00 on Friday 14 August 2026. Before the stoppage 2 days 16 hours of laytime were used, and after it 3 days 8 hours.

14. The Vessel was then on demurrage from 08:00 on 14 August 2026 until 16:24 on 19 August 2026, a period of 5 days 8 hours 24 minutes (5.35 days). Under clause 10 all of that time counts, including Sunday 16 August 2026.

15. Demurrage properly due was therefore USD 96,300.00 (5.35 days at USD 18,000.00 a day).

THE PAYMENT UNDER PROTEST

16. By letter of 15 September 2026 the defendant's solicitors claimed demurrage of USD 184,500.00. That figure counts laytime from 10:24 on 3 August 2026, and counts the stoppage and Sunday 9 August 2026, to reach 10.25 days.

17. By letter of 23 September 2026 the claimant's solicitors explained why that was wrong and offered USD 96,300.00 in full and final settlement. By email of 30 September 2026 the defendant's solicitors rejected the offer and refused to agree to arbitration.

18. In the same email the defendant's solicitors said that unless USD 184,500.00 was paid by 14 October 2026 the defendant would issue proceedings and seek security for its claim, including by arresting the claimant's vessel, the MV Curlew Bay, which the defendant understood the claimant was selling.

19. The claimant had agreed terms to sell the MV Curlew Bay, and an arrest, or the threat of one, put the sale at risk.

20. On 9 October 2026 the claimant paid the defendant USD 184,500.00 to avoid the arrest. It paid expressly under protest and without admitting that the sum was due, and the defendant received it.

21. By letter of 14 October 2026 the claimant's solicitors asked the defendant to repay USD 88,200.00, the difference between the sum paid and the demurrage properly due, by 21 October 2026. By email of 19 October 2026 the defendant's solicitors refused.

THE CLAIM

22. The claimant paid the defendant USD 88,200.00 more than was due. It did so only to avoid the arrest and under protest, and the defendant knew that. The defendant has no right to keep the excess and has refused to repay it.

23. The claimant claims interest on USD 88,200.00 from 9 October 2026 at such rate and for such

period as the court thinks fit.

THE CLAIMANT CLAIMS

(1) USD 88,200.00;

(2) interest as set out in paragraph 23; and

(3) its costs of this claim.

STATEMENT OF TRUTH

The claimant believes that the facts stated in these particulars of claim are true.

I am authorised by the claimant to sign this statement.

Signed:

Tom Reeve

Full name: Tom Reeve

Position: Partner, Ashcombe Reeve LLP, solicitors for the claimant

Date: 22 October 2026

Ashcombe Reeve LLP, Ashcombe House, 9 Quay Street, Marlbridge WX1 4AB (ref TR/1001.1/PN), solicitors for the claimant.

To the defendant: Kingsholm Tonnage Ltd, Kingsholm House, 31 Fenner Street, Eastwick EW4 8HP.